

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

CIVIL REVISION NO. 450 OF 1998

In the matter of:

Arab Ali, as his heirs Faizur Rahman
and others.

....Petitioners.

-Vs-

Present
Mr. Justice Mamnoon Rahman

Hazi Md. Abdul Aziz and others.
....Opposite parties.

Mr. Md. Tabarak Hussain, Sr. Adv. with
Ms. Urme Rahman, Adv.

...For the petitioners.

None appears.

...For the opposite parties.

Heard on: **01.06.2023**

And

Judgment on: **The 7th June, 2023**

Mamnoon Rahman,J:

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite parties No. 1(ka) to 1(Tha) and 2-8 to show cause as to why the impugned judgment and decree dated 07.08.1997 and 14.08.1997 respectively passed by the District Judge, Sylhet in Title Appeal No. 226 of 1996 affirming those dated 30.09.1996 and 03.10.1996 respectively passed by the Assistant Judge, Gowainghat in Title Suit No. 5 of 1993 should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The short facts relevant for the disposal of this rule, is that, the opposite party as plaintiffs instituted Title Suit No. 5 of 1993 in the

court of Assistant Judge, Gowainghat impleading the present petitioner as defendant for declaration of title as well as recovery of khash possession. The case of the plaintiff-opposite party, in short, is that, Hazi Konu Mia was the S.A. recorded owner of the suit land, measuring an area of 6 decimals. He died leaving behind one wife Ronika Bibi and four sons Rafiq Mia, Mahmud Ali Showkat Ali and Soyful Alam. The mother Ronika Bibi sold her share and also the share of her minor son Rafiq Mia, as his natural guardian, to her another son Mahmud Ali by the registered deed dated 02.03.1963. Mahmud Ali and Showkat Ali sold their respective shares and the share of their another minor brother Soyful Alam to Habibur Rahman and Hazi Soid Mia by the registered deed dated 07.06.1963. Habibur Rahman and Hazi Soid Mia both sold the land to another Habibur Rahman by the registered deed dated 22.02.1965, who mutated the land in his name by the Mutation Case No. 214 of 1966. The defendant No. 1 was a tenant under Habibur Rahman, his heirs sold the entire property to the plaintiff by the registered deed dated 31.01.1998 and delivered possession to him. The plaintiff erected a shop on the suit land; the northern part was under his possession and the defendant No. 1 as the tenant possessed the southern part of the shop. The plaintiff filed Mutation Case No. 70 of 1988-89 for mutation of his name in which the defendant No. 1 raised objection and claimed that he purchased some portion of the land and as such the mutation proceeding was stayed. Subsequently the plaintiff upon search obtained the deed dated 17.01.1984, on the basis of which the defendant No. 1 is claiming title. Hence, the suit.

The present defendant contested the suit by filing written statement denying all the material allegations made in the plaint. The case of the defendant-petitioner runs as follows;

“Defendant No. 1 i.e. the petitioner herein, contested the suit by filing written statement and stating inter-alia that, S.A. recorded owner of the suit land Hazi Konu Mia sold 4 decimals land from the southern part to the deceased defendant No. 1 in 1364 B.S. by an unregistered deed and delivered possession thereof and the defendant No. 1 constructed a katcha shop house to western portion of the land and started business there and he lived in the eastern portion with his family as his homestead. During the liberation war in 1971 his house got burnt and he lost all the documents including his deed and he moved to another place. After independence he came back and started living in the suit land as earlier. After the death of Hazi Konu Mia his heirs never raised any claim of the suit land. Rafiq Mia, the minor son of Konu Mia, after attaining majority claimed the suit land stating that he got the suit land in his share. The defendant No. 1 in order to avoid complexity agreed to purchase the land from Rafiq Mia, the defendant No. 2 by the registered deed dated 17.01.1984. The defendant No. 1 was never a tenant under the plaintiff or his predecessor in the suit land and the plaintiff’s deeds

are collusive and inoperative. The suit is liable to be dismissed with cost”.

During trial both the parties adduced evidences both oral and documentary. The trial court proceeded with the suit and framed as many as four issues. The court below after hearing the parties, considering the facts and circumstances, provisions of law, material on records, evidences both oral and documentary decreed the suit in favour of the plaintiff-opposite parties. Being aggrieved and dissatisfied with the aforesaid judgment and decree passed by the trial court the present petitioner-defendants moved before the District Judge, Sylhet by way of appeal being Title Appeal No. 226 of 1996 and the same was heard and disposed of vide the impugned judgment and decree dismissed the appeal and thereby affirmed the judgment and decree passed by the trial court.

The deceased defendant No. 1 filed the instant civil revision before this court and obtained the present rule.

No one appears on behalf of the opposite parties to contest the rule.

Mr. Tabarak Hussain, the learned senior counsel appearing on behalf of the petitioner submits that both the courts below without applying their judicial mind and without considering the facts and circumstances and the case of the plaintiffs and defendants *side by side* most illegally and in an arbitrary manner passed the impugned judgment and decree occasioning failure of justice which requires interference by this court. He submits that the courts below committed

an error of law and facts as well as failed to consider the case of the plaintiff and defendants side by side and thus the courts by misinterpreting the facts and misinterpreted the law and the relevant provisions regarding transfer of property most illegally and in an arbitrary manner came to a conclusion in favour of the plaintiff occasioning failure of justice. He further submits that admittedly the present petitioners are in possession of the suit property as admitted by the plaintiff in their plaint itself as much as they are praying for a decree for recovery of possession so there is no denial regarding the question of possession in any manner. The learned senior counsel raised the question of law in the instant proceeding regarding the manner and propriety of the acquisition of the property by the predecessors of the plaintiff. The learned senior counsel placed the judgment and decree passed by the courts below as well as the L.C. Records which includes the plaint of the suit in question. Referring the same, he submits that admittedly the plaintiff claimed the suit property from purchase and sale made by the wife of Konu Mia and son on behalf of minor children. As per the learned counsel the wife Konu Mia sold certain portion of land on behalf of minor children as much as another brother namely the son of Konu Mia also sold some property on behalf of some minors. So, as per the learned counsel the wife of Konu Mia being not a legal guardian cannot transfer any such property she had no legal capacity to do so without appropriate sanction of law and the transfer by wife of Konu Mia on behalf of her minor son and all subsequent transfer or acquisition are void and upon which the plaintiff

cannot claim any right and title in the suit property. The learned senior counsel placed certain portions from the Mahomedan Law by Mullah and submits that mother or brother in no circumstances can be a legal guardian of minor's property supported by a decision of Imambandi and Others-Vs-Mutsaddi and Others (Privy Council). The learned senior counsel also submits that admittedly the plaintiffs claiming the defendant as tenant under Habibur Rahman but they failed to produce any documents or evidences to that effect. He further submits that apart from the same the suit land is unspecified and there is a dispute regarding the Dag Number as incorporated in the deed of sale and the plaint. As per the learned counsel there is no scope to give effect of a sale by an unauthorized person and in support of his contention he relied upon a decision reported in 4DLR(1994)86. Relying upon the decision reported in 16DLR(SC)477 he submits that it is a settled principle of law that the void documents need not to be avoided and as per the learned counsel since the deeds executed by Ronika Bibi and Mahmud Ali are void documents the plaintiffs claiming subsequent title on the basis thereof did not acquire any interest. The learned senior counsel lastly submits that the lacuna or defect of the defendant cannot be resorted in passing a decree in favour of the plaintiff unless and until the plaintiff has proved his right and title by independent and credible evidence which is very much absent in the case in hand. In the present suit the fundamental principle is that the plaintiff has to prove his right and title in the suit property but in the absence of any legal transfer they cannot claim and get the benefit from the court of law.

I have perused the impugned judgment and decree passed by both the courts below, revisional application, grounds taken thereon as well as L.C. Records, provisions of law and decisions as referred to. I have heard the learned Advocate for petitioner.

On perusal of the same, it transpires that admittedly the present opposite party instituted a suit seeking declaration of title as well as recovery of possession. The nature of prayer clearly transpires that the question of possession has already been settled at the time of filing of the suit, namely the suit property is being enjoyed by the defendants. Admittedly, the defendant-petitioners contested the suit by filing written statement denying all the material allegations made in the plaint. It also transpires that during trial both the parties adduced evidences both oral and documentary. It transpires that during trial the plaintiff adduced five witnesses and also produced documentary evidences which were marked as exhibits. It also transpires that the defendants also adduced six oral witnesses and also produced documentary evidences which were marked as exhibits. Admittedly, the revision is being preferred against the concurrent finding of facts and law arrived at by the courts below. It is now well settled proposition of law that concurrent finding of facts and law cannot be overturned unless and until the petitioner-applicant shown cogent reason as much as the question of law and factual aspects misinterpreted by the trial court ultimately causing failure of justice in the adjudication of the real question in controversy.

In the present case in hand, the simple case as raised by the plaintiffs, are that, they acquired the property from Ronika Bibi and Mahmud Ali. There is no denial from the plaint case that Ronika Bibi and Mahmud Ali sold the property to the predecessors in interest of the plaintiffs which belongs to the minor's children of Konu Mia. On the other hand the defendants claimed that they obtained the property from Rofiq Mia who sold the same in their favour by a register instruments after obtaining majority. Apart from that the case of the defendant-petitioner, is that, actually Konu Mia intended to sell the property in favour of the defendants and they were put into possession by the Konu Mia at his life time.

However, it transpires from the findings arrived at by the trial court as well as appellate court that both the courts below came to a conclusion that since the plaintiffs are holding legal title documents duly executed by Ronika Bibi and Mahmud Ali and there was no resistance by Rofiq Mia after attaining his majority they are entitled to get a decree. The question of possession has already been discussed earlier and if title is being proved in favour of the plaintiffs, law will take its own course and the plaintiffs are entitled to get a further decree of recovery of possession.

Apart from the question of specification of the suit property, manner of possession, defect in the Dag Numbers of the suit title documents as well as the plaint a vital question of law has been raised by the learned counsel for the petitioner in the present case in hand. The question regarding the effect of a transfer by a guardian in respect

of minor's property is of great importance. In section 364 of the Mahomedan Law by Mullah the provisions of alienation of immovable property by de facto guardian has been discussed wherein it has stated that the mother as has already been stated, is not the legal guardian of the property of her minor children as per section 357 of the said law. She is merely a de facto guardian—a bare custodian of their property, and has no power to sell, mortgage, or otherwise deal with immovable property belonging to minor. The aforesaid principle has further been made applicable in the same manner to a brother, uncle and other relations. An alienation by a brother, uncle or any other relation of a minor's immovable property is wholly void. The said contention was relied upon the case of Imambandi and Others-Vs-Mutsaddi and Others (Privy Council) reported in 1918 XLV Indian Appeals at page 73. Also it appears from the decision as reported in 46 DLR 86 wherein the High Court Division categorically stated that *“the mother is not a legal guardian of the immovable property of her minor children though she may be in charge of the same. Her position is not better than that of any other person who has the charge of the person or property of a minor and she is nothing but “de facto guardian” having no power to convey to another any right or interest in the immovable property”*.

While passing the aforesaid judgment the High Court Division also relied upon the case of XLV Indian Appeals at page 73 as mentioned hereinabove. It has been mentioned earlier that admittedly the instant revision is being preferred against the judgment of affirmance but in the present case in hand it appears that a total reliefs

as claimed by the plaintiffs on the strength of two instruments executed by Ronika Bibi and Mahmud Ali in favour of the predecessors in interest of the plaintiffs absolutely relates to the property of the minors. As per the decision as mentioned hereinabove any such transfer in any manner of a minor's immovable property is void and cannot create any right and title upon any such transferee or any subsequent transferee in any circumstances.

In the present case in hand, admittedly the trial court while passing the impugned judgment and decree considered and came to a conclusion about the lacuna and latches on the part of the defendants and their claim in the suit property. The defendants claim based on a deed executed by Rofiq Mia who sold the same after attaining majority and whether the Rofiq Mia is competent to transfer the property as a whole namely four decimals of land to the defendants are not materials herein because at the first instance the plaintiff has to prove his right and title in the suit property. In the present case in hand, it is apparent that the property claimed by the plaintiffs based on two documents and their claim could succeed if it would be proved that both the instruments are legal and lawful and can pass title. But as per the aforesaid decisions and the principle regarding the management and control of a minor's property it is very much clear that a mother or brother are in no way competent to make any conveyance, transfer, mortgage or sale of a minor's property and if so they are liable to be declared void and such transferee cannot be based to pass any decree in favour of the plaintiff. Based on the legal provisions, especially

question of law I am of the view that both the courts below in the present case in hand committed illegality in declaring the decree of title in the suit property in favour of the plaintiffs, causing miscarriage of justice which requires interference by this court. Hence, I find substance in this rule.

Accordingly, the instant rule is made absolute without any order as to cost. The impugned judgment and decree passed by the courts below are hereby set aside and the Title Suit No. 5 of 1993 stand dismissed.

Send down the L.C. Records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman,J:)

Emdad. B.O.